6/9/2021 - National Grid NY - 19-G-0309/0310

STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

CASE 19-G-0309 - Proceeding on motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a national Grid NY of Gas Service.

CASE 19-G-0310 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan gas East Corp. d/b/a National Grid for Gas Service.

CASE 18-M-0270 - Petition for Approval, Pursuant to Public Service Law, Section 113(2), of a Proposed Allocation of Certain Tax Refunds Between Keyspan Gas East Corp. d/b/a National Grid and Ratepayers.

PUBLIC STATEMENT HEARING

DATE: June 9, 2021 at 7:01 p.m.

LOCATION: WebEx

BEFORE: ALJ ASHLEY MORENO
ALJ JAMES A. COSTELLO

Reported by Becky Foster

THE REPORTER: You are on the record.

A.L.J. COSTELLO: Thank you. I call Case 19-G-0309, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of the Brooklyn Union Gas Company, Doing Business as National Grid New York for Gas Service, Case 19-G-0310, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Keyspan Gas East Corp, Doing Business as National Grid for Gas Service and Case 18-M-0270, Petition for Approval, Pursuant to Public Service Law Section 113 Subdivision 2 of a Proposed Allocation of Certain Tax Refunds Between Keyspan Gas East Corporation and Rate Payers.

Good evening and welcome to this evening's public statement hearing. My name is James Costello and I am an administrative law judge with the Department of Public Service. With us this evening also, is Administrative Law Judge Ashley Moreno and we will -- together, we'll be responsible for presiding over this evening's hearing. We are joined also by Joseph White and Xenia Vega of the Department of Public Services Office of Consumer Services, who will be providing technical assistance

to us this evening.

As I said, we're here for a public statement hearing, which was noticed by the Secretary on May 21st, 2021 and before this hearing, the companies have provided information on the joint proposal that was filed in these proceedings earlier on May 14th, 2021.

The hearing is to receive your comments on the joint proposal. Under New York State Law, the Public Service Commission may adopt or reject the joint proposal in whole or in part or it may modify it. The Public Service Commission currently has four members. The interim Chairperson, John B. Howard and three Commissioners, Diane Burman, James Alesi and Tracey Edwards and we're fortunate tonight to have Commissioner Burman joining us at the public statement hearing and I'd like to open this up to Commissioner Burman, if she would like to make a statement to the participants.

COMMISSIONER BURMAN: Thank you so much, Judge. As the Judge said, my name is Diane Burman. I've been a Commissioner since 2013. I find it really important to be on as many public statement hearings as I can. This one is virtual. My role

here tonight, is really to be a listener. I intend to listen very carefully and I appreciate everyone who is participating tonight. Thank you so much, Judge.

A.L.J. COSTELLO: Thank you, Commissioner. So, what I'm going to do, is briefly go over something about the public statement hearing and then we'll give you instructions on how to provide your statements, whether you are participating by telephone or participating through the WebEx.

The purpose of tonight's hearing, as I said earlier, is to provide you with the opportunity to tell the Commissioners your thoughts on the joint proposal that was filed in these proceedings. This is not an evidentiary hearing, it's not a question and answer session. It is rather, a forum to hear from you on your thoughts as to the joint proposal.

A court reporter is transcribing the statements that you make today and a transcript of the hearing will be included in the official record of this proceeding and be made available on the Department of Public Service website -- the Department of Public Service website under the case

numbers for these proceedings.

I should mention also, that this is not the only opportunity for you to make a comment. If you are listening and do not want to speak but you still want to make a comment or even if you are speaking and want to make additional comments, there are other methods for you to do that. If you are participating by WebEx, you'll see those methods listed on the screen in front of you. If you are participating by phone, I will briefly go over them. You can email your comments to the Secretary of the Commission, which is secretary@dps.ny.gov. You can leave comments on a 24 hour phone service at 1-800-335-2120 -- that's 1-800-335-2120. You can post comments electronically by going to the Department of Public Service's website and doing a search under the case numbers for these cases, which are 19-G-0309 or 19-G-0310. And, no matter how you make your comments, all comments are given equal treatment and consideration and carry the same weight.

I also want to let you know, if you are having any technical difficulties or experience and technical difficulties during this public statement hearing, you can call for assistance and

leave a message at 1-800-342-3330 -- that's 1-800-342-3330.

So, what I'm going to do now, is call the individuals who have registered to speak one-by-one. If someone is called and is not available when I call them, I will move on to the next person and come back to anyone who was not available. I'll come back to them at the end.

For people who have registered electronically, we will unmute your line after we call your name. You should hear a tone and see that the microphone icon on your screen is no longer red. And, remember please, if you have muted the line on your end, you will also have to unmute it on your end before we can hear you.

For people that are participating by telephone, when I call out your name, I will ask that you press star three on your telephone, so we can recognize you and unmute your line. It may take us a moment to locate you and do that, so please be patient and do not begin speaking until you have heard a beep or been notified that your line is unmuted. And, again if you have muted the line on your end, you will have to unmute it, so that we can

hear you. After you've provided your statement by telephone, we're going to ask you again to hit star three. That will then allow us to more easily identify the next speaker.

When your line is unmuted, we ask that you please state and spell your name and if you're speaking on behalf of an organization, identity the name of the organization. And, then once we confirm that we can hear you, you can proceed to make your statement.

Remember to speak slowly and clearly, so that the court reporter can accurately capture your statement for the record. And, we ask if you have a lengthy statement, please provide an oral summary and follow-up with the submission of the full written statement by email or regular mail. And, we are going to ask you to try to keep to a three-minute limit for your statements. If you go over it a little bit, we're not going to cut you off but just to make sure that everyone gets heard, we're going to ask you to try to limit it to three minutes.

So, with that, we'll turn to our first speaker and that will be Assembly-person Emily Gallagher. And, I don't see -- I don't know if

Assembly-person Gallagher is calling in. If so, you have to hit star three to raise your hand, so we can identify you. And, we ask you not to raise your hand until we call you. So, if you've raised your hand already, just please hit star three, so that we can identify the people that we're calling to speak, at this time.

MR. WHITE: Your Honor, I don't see any raised hands. This is Joe -- Joe White. I don't see anyone's hand up.

A.L.J. COSTELLO: Okay. I have Mr. November's hand showing.

MR. WHITE: No, Mr. November's hand is up but I don't see --

A.L.J. COSTELLO: Anybody for Emily Gallagher?

MR. WHITE: -- nobody for Emily Gallagher, correct, sir. Thank you.

A.L.J. COSTELLO: Okay. So, then our next speaker will be Eric Alexander.

MR. WHITE: I didn't see Eric either.

A.L.J. COSTELLO: He's -- he's on there identified --.

MR. WHITE: Is he?

A.L.J. COSTELLO: Yes.

MR. WHITE: Am I spelling his name incorrectly?

A.L.J. COSTELLO: E-R -- yes, actually it's E-R-I-C.

MR. WHITE: All right. There we are. Thank you very much. Okay. Go ahead. Thank you.

A.L.J. COSTELLO: Mr. Alexander?

MR. ALEXANDER: Hello, can you hear me?

A.L.J. COSTELLO: We can hear you and you can make your statement.

MR. ALEXANDER: Great, thank you. My name is Eric Alexander. I'm the Director of Vision Long Island. We're a downtown and infrastructure planning organization on Long Island. We testified two years ago, you know, related to these rates and in support. We are glad to see there's a settlement and we certainly support that moving forward.

To be clear and we said this last time, so sorry to reiterate, we are not experts on rates, so we leave these to the regulators. We are also not experts on energy and we certainly appreciate the expertise that's gone into these

matters through the hearings, through the P.S.C. and through the work of National Grid -- the utilities.

With that said, we interface with large amounts of Long Islanders through our local chambers, our civics, our local municipalities. And, you know, two -- two things to note, that there is an importance of natural gas as an affordable alternative, certainly to home heating oil and -- to heat folks' homes in general. You know, right now, the big issue is affordability. Coming out of the Coronavirus, lots of folks have lost income. There's massive food insecurity. Folks have lost their jobs and are seeking now to get back into different jobs and change careers. There has been massive economic impact and -- and dislocation. So, the ability to have affordable energy to heat their homes is critical.

We found this out over the last two years, also the importance of natural gas related to the -- the -- the moratorium that -- that, you know, hurt our small business community for a time, where there was no access to getting natural gas online. We're glad that those issues are -- have been temporarily resolved. But, we certainly see while we

want a clean energy economy tomorrow, we recognize that electric heat pumps, geothermal projects like, bio-gas and others, aren't there yet, at the affordable rates that folks need.

We're glad also to see that there's financial assistance to low income folks and that A.A.R.P. has been participating in that process. We know that there are lots of folks in need. We're glad to see also, that as far as ... on their bills, that there's a process also.

We're also glad to see that there are public programs on energy efficiency, even experimental programs in geothermal and support also for the small business community across the Island, which is the area we cover, Nassau and Suffolk County.

We're also glad to see that there's a fair amount of corporate philanthropy that's done through National Grid and we've not seen enough of that, quite frankly, with some of the other corporations across Long Island. So, we're glad that there's a number of charitable endeavors that they follow and have invested in.

So, with all that said, the public

input to -- through this process seems to -- just again -- again I haven't been tracking beyond what's been stated but a lot of folks have waded into this process and, you know, I'm glad to see that folks have come together and there's a settlement. There's -- actually folks can agree on things.

So, again I just want to reiterate the support for the rate proposal and the settlement and the bottom line for Long Island right now, is affordability in their energy and heating their homes and we hope that -- that this is a settlement that can build towards future energy solutions that continue to be affordable but also can get us into a clean energy economy. So, I'll stop there and thank you for listening.

A.L.J. COSTELLO: Thank you, Mr. Alexander. Our next speaker will be Kim Fraczek. Okay. Ms. Fraczek --.

MS. FRACZEK: Thank you so much.

A.L.J. COSTELLO: Just -- I'm sorry, I'm just reminding you to just state your name and spell your name for the court reporter. I -- I didn't ...

MS. FRACZEK: Sure, no problem. My

name is Kim Fraczek, K-I-M, last name Fraczek, F like Frank R-A-C like Charlie Z like zebra E like Edward K. I'm the Director of SANE Energy Project, representing 13,000 New Yorkers looking for renewable energy, equitable energy that serves all people, regardless of income and zip code. We're also a very active member to this rate case, which I'm about to provide comment on, in addition to SANE Energy's lengthy opposition statement to National Grid's joint proposal with the Staff of the Public Service Commission and a small handful of other groups.

I also support -- I'm also participating in the growing gas bill strike, which we're organizing more New Yorkers to strike daily against this heinous proposal, since money is what seems to be the only language here.

Please reject this joint proposal. We're tired of business as usual and we don't have time. Mr. Dachico presented the proposal as not business as usual but we know that the proposal is filled with hundreds of millions of our hard working New York dollars that are already struggling with economic and health impacts from COVID and similar poisonous infrastructure in our neighborhoods.

The whole concept that Mr. DeCicco presented, is a charade, claiming that our bills will only increase 5 dollars; sounds not bad to the average New Yorker who might view this presentation. He doesn't know that there are 1.9 million captive customers that have no choice but National Grid and rely on the D.P.S. and the P.S.C. to have their backs, that will eventually -- and then -- then they'll eventually see hidden surcharges for more fossil fuel infrastructure that we don't need.

The Company has delayed this process for years. The Company holds my neighbors, local businesses and people that I'm accountable to, as hostages to their company. They shifted responsibility from a fake moratorium in 2019, in order to make money from another pipeline we didn't need, called Williams (phonetic spelling) to a Proceeding 19-G-0678, with the help of the Public Service Commission Staff, which only created a process of further delays and decisions and we're tired of being processed to death.

We are tired of the proceedings and the delays. We're tired of a cheap sidewalk shell game, to confuse the public so no decisions need to

actually be made that will change business as usual. Changing business as usual, may actually mean National Grid goes out of business. There is another model for us to operate that will serve local jobs, wallets and health.

We have asked politely for years, to work together with State agencies, like yourselves and the legislature. We've been researching and presenting plans. We do the work, only to get rammed with more pipelines and being told this is about modernizing and reliability. What a sham.

Changing business as usual, means halting fossil fuels. It means stop cooking with gas; stop heating with gas. And, for this company to tell us that we're not ready, that we don't have the technology and that it's too expensive, while actively -- actively lobbying to halt alternatives like community solar and genuine energy efficiency, is absolutely outrageous that the Staff of the Public Service Commission would entertain this narrative in 2021.

For the D.P.S. Staff to come back and tell all of us that have worked endless hours outside of our regular jobs, that we have not proven that we

don’t need this infrastructure, is an insult to our intelligence. We read the documents. We see the numbers. We see the Staff agreeing to an independent consultant only proficient in gas, not renewable alternative engineering, to look into the need of Phase Five of the North Brooklyn Pipeline, which only became controversial and halted because the local community was forced to escalate to civil disobedience, since Phases One through Four were snuck in under the radar, until we became parties to this case and identified something was wrong here.

We see you continuously, National Grid, market gas in your headquarters at One Metro Tech. National Grid flat out lied in their presentation and I hope Commissioner Edwards, who unfortunately had to leave before public comments were ...

We see National Grid only used one twelfth percent of their capacity in the last twelve years of L.N.G. and so it’s outrageous that we have to spend millions more to build more L.N.G. facilities up the street from my house. L.N.G. is not an alternative to pipelines. L.N.G. is a global asset that is being bought and sold globally.

We are people of the world and we pay attention. This project is connected to the North Brooklyn Pipeline, otherwise known as M.R.I. that has been illegally segmented, to avoid cumulative impact reviews on community and the environment. In fact, the NYCHA Housing Complex adjacent to the L.N.G. facility, has been forced to file a lawsuit, with the SANE Energy Project, against National Grid for this proposal for L.N.G.

Another mis-note that the Company uses, is to confuse the public by telling us that it's not a pipeline. They came to our community Board meeting two weeks ago and told me to my face, that I was confused that a 30 inch steel pipe running down my street, was not a pipeline, that it's a reliability project for their state of the art transmission system. State of the art? A 19th century fuel that -- that science says we have to retire, if we want to sustain life on this planet, is state of the art?

The fact that we have heard from good people running organizations to serve targeted communities in the afternoon hearing, who received quote/unquote, grant money or as the speaker before

me said philanthropy, small drops from the National Grid to guarantee support for National Grid's proposal is a travesty that nobody that serves the public should tolerate. We should not be relying on this company, where the C.E.O. makes $3,600 per hour -- per hour, that we should tolerate their greenwashing was community division in the State of New York.

We know that we have proved this is not about reliability. We know that this is about National Grid's bottom line and it is time for New York to serve New York, not a U.K. based company that purchased the Brooklyn Union Gas Company as an asset. To see heating our homes and cooking our food as an asset, not a public good, a public service but as an asset to pay out shareholders to feed this corporate model and prevent us from moving to real state of the art infrastructure that would help our cumulative community flourish over National Grid's shareholders.

We need you to have our backs, Your Honor, Commissioners and Staff. We need you to have our backs and stand up to this charade. Do not approve this rate hike. This is not about reliability. We've called National Grid out before.

We've called Con Ed -- we've caught Con Ed cheating before. This corporate utility model is bad news. Rejecting National Grid's proposal is the only right thing to do. Do not listen to National Grid's expensive attorney tell us what the right thing to do is. Thank you very much.

A.L.J. COSTELLO: Thank you. Our next speaker will be Dylan McCombs.

MR. MCCOMBS: Hello, can you hear me?

A.L.J. COSTELLO: Yes, we can hear you.

MR. MCCOMBS: Great, thank you so much for taking our comment and hearing mine. I really do appreciate it. So, my name is Dylan, D-Y-L-A-N Omori, O-M-O-R-I McCombs, M-C-C-O-M-B-S. I'm originally from Oakland, California but I now reside in the Ridegewood Bushwick area. I have done work with ... Pipeline in Brooklyn, ... out of U.K. but I must emphasize that I do not speak for them today. I'm only representing myself right now.

I'm also among, at this point, some of the many activists who have chained ourselves to the site of the M.R.I. construction projects, in an effort to stop it because apparently, that's what it

takes. I just want to take a few moments to respond directly to some of the things that I saw in the presentation that was just given to us just now. I have to, frankly, laugh at the idea that a rate hike is affordable. I saw the word affordable mentioned many times throughout that presentation. Here's the bottom line, we're talking about a rate hike. A rate hike is inherently not affordable. Now, keeping in mind, I'm talking from the Brooklyn perspective, the -- the neighborhoods that I know will be paying higher gas bills because of this, are not always the richest neighborhoods. A lot of them are disproportionately poor, disproportionately black and brown and they're the ones that are going to be targeted with this. I understand that there is some help for low income people but the bottom line is, is this is a rate hike, plain and simple and that's why I have to ask you to oppose it.

Additionally, the gentleman said, that all construction for M.R.I. will be halted until further approved by the Governor. Frankly, as the previous caller laid out, I do not see why I should take National Grid on their word for that. The Company already constructed parts of the M.R.I.

project without the consent of any of the neighborhoods it was built it. This is on top of the fact, that they are still collecting once again, a rate hike. So, part of me, if I'm frankly a little bit suspicious, I have to ask you to reject this.

Lastly, the gentleman said, the funding for -- from this rate hike will go to infrastructure updates and green initiatives. I'm suspicious of that, of whether or not infrastructure updates are actually infrastructure updates, for reasons that I already laid out. But, I know that the Power Point will be available for me to look at after this and it will show me how much my rate will increase. But, here's what I know it will not show me, how much of a pay cut their executives will take. What I would like to ask is this, why should National Grid's executives not have to pay for their mistakes? Why should they not have to pay for the unnecessary and racist pipeline, they have already put in the ground, via M.R.I. construction? At the end of the day, we're still going to be paying for that pipeline because of this rate hike.

What I would like to ask, is why they should not have to pay for their climate -- climate

change in -- in using infrastructure and why they should not have to pay for their neglected safety measures? Thank you. That is my comment.

A.L.J. COSTELLO: Thank you. Our next speaker will be Lynn Todrick -- I'm sorry, Todrick. If you are participating by telephone, please hit star three, so that we can identify you. Okay. I am not seeing anybody, so we will move on to Sara Gronham.

MR. WHITE: I -- I don't see Sara, Your Honor. Sara, if you've called in, can you hit star three on your telephone.

A.L.J. COSTELLO: All right. Then we'll go on to the next speaker, Chris Durante.

MR. WHITE: Chris is present. Let me get to Chris. There we go. Okay. Chris, go ahead.

MR. DURANTE: Yes, hello. Can you hear me?

A.L.J. COSTELLO: Yes, we can. Please just, you know, state and spell your name for the record and then --

MR. DURANTE: Okay. My name is Chris, C-H-R-I-S Durante, D-U-R-A-N-T-E. I'm a resident of Washington Heights and I am here today to stand in

solidarity with my fellow New Yorkers, to vehemently express my opposition to National Grid's proposal for a rate hike, to pay for its fracked gas pipeline through Northern Brooklyn.

The residents of Brooklyn, Long Island, Staten Island, many of whom have opposed this pipeline for years and who are the ones who are most directly affected by its environmental harms, should not be asked to fund measures, that negatively impact their own health and environmental wellbeing.

As we all know, New York City has committed to a green new deal, that would have the City achieve carbon neutrality by 2050. While National Grid's current proposal speaks of conducting environmental impact studies and initiating steps toward the transition to carbon neutrality, far bolder initiatives are needed. At a time when the world is in the midst of a climate crisis, many communities across the globe and the United States, are experiencing the disastrous effects of climate change. We should be focusing on eliminating, not simply reducing our greenhouse gas emissions, as well as taking measures to correct the environmental injustices that have been committed.

To this end, a rate hike on those who are most affected by National Grid's pipeline, is a far cry from a just proposal. The renewable economy is already underway and flourishing in many parts of the United States, as well as many other countries around the world. Rather than compromises, we need dramatic reforms, to effectively combat the climate crisis and environmental injustice. Solutions like community solar, geothermal and heat pumps, as well as energy efficient retrofits, composting and bio-digesting technologies, all of which can assist in job creation, ought to be implemented immediately.

Taking minor and incremental steps in 2020, which can easily be backtracked or turn out to be false promises of a future date, do not assure that our City achieves its carbon neutrality goals or environmental justice.

We cannot simply hope to achieve carbon neutrality and pray for environmental justice. As New Yorkers, known for our strength of will and our ingenuity, we must take measures to ensure that carbon neutrality is achieved and part and parcel of this effort, must include rejecting National Grid's counter proposal. I thank you very much

Commissioners for hearing my statement.

A.L.J. COSTELLO: Thank you. Our next speaker will be Barbara Hertel. If you are calling in, we ask you to please hit star three, so that we can identify you. Okay. Not seeing anybody, the next speaker then would be Luz Gowell (phonetic spelling). And, again if you are calling in by telephone, please hit star three. Not seeing anybody, we are going then to George Povall and I apologize to anyone whose name I don't --

MR. POVALL: Thank you so much.

A.L.J. COSTELLO: -- I don't say correctly. Mr. Povall, you may state your name and spell your name and provide your statement.

MR. WHITE: Mr. Povall, you've been unmuted. You can --

A.L.J. COSTELLO: Okay. I think we can move on from Mr. Povall. The next speaker will be Laurel Leckert.

Mr. White, can you find Laurel Leckert?

MR. WHITE: Go ahead -- go ahead, you've been unmuted.

MS. LECKERT: Hi, can you hear me?

MR. WHITE: Yes, we can hear you.

MS. LECKERT: Hi, I too am against this proposal. I would like to reject any rate hike that forces customers to pay for the widely opposed North Brooklyn Pipeline and fracked gas projects, like L.N.G. in Greenpoint and C.N.G. on Long Island through sneaky surcharges.

The rate hike proposal between National Grid and the Department of Public Service, fails to serve the public interest and instead, invests hundreds of millions of dollars in unsafe and unneeded projects. The rate hike proposal ignores tens of thousands of public comments that were submitted in the proceedings and in the proceeding investigating National Grid's harmful 2019 moratorium.

As a National Grid customer, I refuse to pay for National Grid's racist North Brooklyn Pipeline or any other fracked gas project. These fracked gas projects threaten the health and safety of local communities and the climate.

New York correctly listened to the science on fracking but has refused to recognize the same science that says, fracked gas is a disaster for

health and climate. Investments in new fracked gas projects, go against our climate law and it will be us, the customers, who get stuck with the bill when these projects become stranded assets. It is unconscionable to be raising monthly bills for communities that are still struggling with the economic and health impacts of the COVID-19 Pandemic, to pay for dirty fracked gas infrastructure, that will continue a racist history of fossil fuel pollution.

Multiple reports have found that there is no need for National Grid's proposed Greenpoint L.N.G. expansion or for the C.N.G. project they built on Long Island. We shouldn't be on the hook to pay for these long term capacity projects, just because National Grid went ahead and built them against the will of the community.

New York State should have already rejected National Grid's long term capacity fracked gas projects and now is trying to sneak them in through surcharges that will jack up our monthly bills in the future even more. New York State has failed to hold National Grid accountable but New Yorkers are. Community members shut down

construction and have now launched a gas bill strike. We won't sit by and pay to be poisoned. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Annika Leybold. Please state and spell your name for the record.

MS. LEYBOLD: Hi, my name is Annika Leybold. It's spelled A-N-N-I-K-A, the last name is L-E-Y-B-O-L-D. I'm glad to be here. This is the first public comment I've ever made. I'm unaffiliated with any organization. I'm speaking as a resident of the neighborhood and as a young person. I'm a 26 year old nursing student at CUNY City Tech and I've lived in the South Williamsburg and ... neighborhoods for a little over four years. Studying the human body in school and doing mutual aid work in my free time during this Pandemic, has really clarified to me why this pipeline and why asking the citizens to pay for it is absolutely unacceptable. Please reject this joint proposal.

I wish you could see how many of my neighbors ask for mutual aid funding to pay for their gas bills already before this so-called affordable rate hike has gone into effect. The placement of this pipeline is racist, deliberately going through

black and brown communities, who already face higher rates of C.O.P.D. and COVID-19, as well worse environmental conditions, like access to clean water and air. This is a form of environmental redlining, putting the most vulnerable New Yorkers at the highest risk of harm.

The pipeline has a high risk of exploding and to my knowledge, National Grid hasn't proposed an evacuation plan. About 49,000 people live in the evacuation zone. There are 22 day care, 20 schools and five health care centers there. The health care heroes like nurses, that were so lauded last year, will be the ones left to manage the effects of these powerful corporations neglecting safety measures and without providing any support from National Grid.

In the bigger picture, my generation has been abandoned by the older generations, in their pursuit of greed. The methane released by fracking, is more than 86 times more powerful than CO_2 emissions. New York banned fracking years ago, so to import it through this pipeline, is absolutely hypocritical. And, the continuation of old forms or natural gas, removes incentives for a complete

transition to clean energy. We need to immediately convert the grid to clean energy, if we are going to reduce any of the worst effects of climate change. It's -- and, it actually is possible to convert to clean energy, scientifically and renewable energy can actually help the economy locally and nationally.

The world that the older generation is creating, isn't livable for my generation and though I love children, I already know that I can't have one because the world that business as usual is forcing my generation to leave, will not be inhabitable for them. Please don't allow the one percent to compromise my future and the future generations for their money now. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Nosir Nicholas? If you are calling in by telephone, we ask that you please hit star three, so that we can identify you. Not seeing anyone, we'll go on to Jeanette Bartlett. Again, if you're calling in, please hit star three. Okay. Then we will go to Jeanne Bergman.

MS. BERGMAN: Hi, this is Jeanne Bergman. That's J-E-A-N-N-E B-E-R-G-M-A-N. Thank you for holding this hearing. I'm here today to urge

the P.S.C. to reject this rate hike, which will force customers to pay for the widely opposed North Brooklyn Pipeline and fracked gas projects like the L.N.G. in Greenpoint and C.N.G. on Long Island.

I was involved in this rate case as a party, one of many civic-minded New Yorkers who devoted shocking amounts of time and effort to defeat this terrible project. We opposed a massive international corporation, which has unlimited funds to both staff the rate case and to sweeten the deal to -- to entice some organizations to go along. At one point, many of us walked out of a process -- out of the process, in part because the Company was continuing to extend the North Brooklyn Pipeline, prior to rate approval, confidently expecting to be made whole and it was right to expect that.

I just listened to the Company's presentation and its representation of this joint proposal as a good thing for the customers and the climate and its claim that this is not business as usual. Of course, it's business as usual. It is a giant international corporation, selling an extractive product that is literally rendering the earth unlivable. It is a market savvy corporation,

misrepresenting the small concessions it was forced to make, as a generous new approach in line with New York's climate goals. It is a duplicitous, creepy business, trying to obscure its profiteering behind complex financial maneuvers, difficult language and timelines that most people can't begin to unpack. We know and National Grid knows that this project isn't necessary. Brooklyn does not need the gas.

We all know, whether we want to admit it or not, that the rapid transition to renewable electricity and absolute bar to any new fossil fuel infrastructure is necessary for our survival. We know that driving extracted infrastructure and dangerous pipelines through low income black and brown communities, is business as usual and is acceptable to investors and policy makers.

New York banned fracking but unfortunately, the State didn't ban fracked gas. It merely limited the extractive damage to our neighbors in Pennsylvania. But, these investments in new fracked gas projects, violate the principles of our climate law and it will be the customers who get stuck with the bills, when these projects become stranded assets.

The people of New York City have been fighting for our lives, with tens of thousands of public comments that were submitted with community protests and with civil disobedience. We are doing this because our lives depend on it and we are pleading with the judges, we're pleading with the P.S.C., to step up, to do your public service, to protect the people of New York and the planet and to reject this joint proposal. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Jacob Shipley. We're just waiting to unmute Mr. Shipley's line. Mr. White, are you on the line? Please bear with us. Evidently, we're having some technical difficulties at this moment, trying to unmute Mr. Shipley's line. I'm going to ask Ms. Vega, are you unable to -- are you able to unmute Mr. Shipley's line?

MS. VEGA: Judge, I'm trying to. Unfortunately, it's not allowing me to because ...

A.L.J. COSTELLO: I apologize. There's -- evidently, we're having some difficulties with the WebEx. Bear with us one second please. Yes, we'd ask anyone that -- that is currently not muted, to mute yourself and we are trying to unmute

Mr. Shipley.

MR. WHITE: Thank you very much; sorry about that technical difficulty.

A.L.J. COSTELLO: We're looking at Jacob Shipley.

MR. SHIPLEY: Hello.

A.L.J. COSTELLO: Mr. Shipley, you're -- you've been unmuted.

MR. SHIPLEY: I'm -- I'm here. Hi, my name is Jacob Shipley. It's spelled J-A-C-O-B S-H-I-P-L-E-Y. My pronouns are he/him and I'm a resident of Bed-Stuy here in Brooklyn. I'm speaking today to ask the Public Service Commission to reject any rate hikes proposed to pay for the North Brooklyn pipeline and fracked gas projects like L.N.G. in Greenpoint and C.N.G. on Long Island.

I spend literally every single day looking at the world and worrying about the growing effects of climate change on my life and the lives of the people around me. I take actions that I can. I recycle, compost, take short showers and that is all great but at the end of the day, it is one hundred companies who cause 70 percent of the emissions and National Grid is one of those companies.

So, none of what I do will matter when large fossil fuel projects, like these, are still being put forward and still being pushed by companies like National Grid. The projects like the North Brooklyn Pipeline make me lose hope because I know for a fact, that this pipeline will make climate change worse. This rate hike will make climate change worse. And, in the end, the best that I can do, is express how I feel about it here but I have no say in actually making the decision to stop it. The Public Service Commission, you have the say to actually stop it.

More pipelines mean more oil and more oil means more dependency and more dependency means more time not spent transitioning our city and world to renewable energy. We need to start now. We have a deadline for 2050 for net zero here in New York State. I believe that’s correct and the science is actually shifting towards saying, that is not going to be enough.

So, how can we justify new fossil fuel projects, that are going to immediately hurt our communities, when our time to shift towards completely renewable energy projects is getting

shorter every day? I'm grateful that New York State has banned fracking but I cannot fathom how we are allowing fracked gas projects, based on technicalities, as the previous speaker said it goes against the whole point of banning fracked gas.

These projects have been widely opposed by the community. We shouldn't have to pay for them and they shouldn't even be happening in the first place. Please reject any rate hikes. Thank you very much.

A.L.J. COSTELLO: Thank you. Our next speaker will be Zachary Hirschfeld. Mr. Hirschfeld, you've been unmuted.

MR. HIRSCHFELD: Yes, can you hear me?

A.L.J. COSTELLO: We can hear you. Just please state your name and spell it for the record.

MR. HIRSCHFELD: Thank you. Zachary Hirschfield, Z-A-C-H-A-R-Y H-I-R-S-C-H-F-E-L-D. ... and -- and thank you for having me tonight. I'm a student at Brooklyn Law School and also a resident of Bed-Stuy Brooklyn. I'm here to voice my strong opposition to this joint proposal. This rate case boils down to a simple action. A British multi-

national corporation, has chosen to upgrade its own assets, in order to line the pockets of its shareholders and now demands that we, the customers, pay its own bill.

National Grid says, that if we don't pay for these upgrades, it won't give us reliable heat this winter. This is extortion. It would be like a landlord forcing its tenant to pay for a collapsing roof in a rain storm. National Grid can afford this cost on its own but instead, National Grid wants to grow its profits, by making us pay 130 million dollars over the next two years through these rate hikes.

And, unfortunately, this is not an isolated practice. National Grid operates heavily polluting Peaker power plants on Long Island, for instance, and receives hundreds of millions of dollars every year from the public to operate them, while they lobby against investment in safe, reliable sources of energy, like solar and wind. This is National Grid's M.O., build and operate dying, inefficient energy systems and force the public to subsidize.

I reject this joint proposal before

even mentioning the environmental racism of National Grid's actions. National Grid failed to inform the majority black and brown communities about the pipeline's construction. Why? Because it knew that we would say no. Based on community feedback, now it is clear that we do not want this pipeline in our neighborhoods. Instead, we want safe, efficient renewable energy. This new construction forces communities to endure the greatest risk of explosions and leaks; communities that already -- already have a below average life expectancy and the highest rates of asthma in the city.

This construction makes New York more unequal and less safe. Is this how we want our city and state to be run, to be swindled by corporations that profit from providing essential services? Yes, this joint proposal is a step in the right direction. Yes, it is positive that National Grid wants to be part of a sustainable future. But, this joint proposal falls short of being just and reasonable because it rewards National Grid for constructing a pipeline that we do not want and that we do not -- certainly do not want to pay for. For these reasons, I strongly oppose the joint proposal and ask the

Commission to reject it. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Andrew Olshevski.

MR. OLSHEVSKI: Hello.

A.L.J. COSTELLO: Hello.

MR. OLSHEVSKI: Hello, good evening. My name is Andrew Olshevski, that's A-N-D-R-E-W O-L-S-H-E-V-S-K-I. I have been a New York resident since 2009 and operated a local business, founded here in Williamsburg Brooklyn, since 2014. I am also a National Grid customer and I am participating in the rate hike.

I'm here today to urge the P.S.C. to reject the destructive and racist North Brooklyn Pipeline joint proposal. Some speakers tonight have touched on the point of affordability. I agree that affordability is important. If affordability is a priority, our rate hike should be rejected. If affordability is a priority, a project that poses unconscionable environmental costs should be rejected. If affordability is a priority, an infrastructure project that disproportionately impacts the health of communities of color, should be rejected.

We can no longer afford to delay the transition to sustainability and renewable energy by investing in this absurd and racist fracked gas project. Despite the overwhelming number of speakers tonight speaking against this proposal, there are some people who are in favor of this proposal. Those are people who are not residents of the neighborhoods that it affects. Those are people, including the leadership of National Grid, a company based in the U.K., were driven by greed and demonstrating blatant disregard for the health of Brooklyn residents and the sustainability of our planet.

So, let's consult the facts. The rate hike proposal between National Grid and the Department of Public Service, fails to serve the public interest and instead, invests hundreds of millions of dollars in unsafe and unneeded projects. The rate hike proposal ignores tens of thousands of public comments that were submitted in this proceeding and in the proceeding investigating National Grid's harmful 2019 moratorium.

Investments in new fracked gas projects go against our climate law and it will be us, the customers, who get stuck with the bill when

these projects become stranded assets. Multiple reports have found that there is no need for National Grid's proposed Greenpoint Liquefied Natural Gas expansion. We shouldn't be on the hook to pay for these long term capacity projects, just because National Grid went ahead and built them against the will of the community.

In conclusion, New York State should have already rejected National Grid's long term capacity fracked gas projects and now they're trying to sneak them in through surcharges that will jack up our monthly bills in the future even more. It's unconscionable to be raising monthly bills for communities that are still struggling with the economic and health impact of the COVID Pandemic, to pay for dirty fracked gas infrastructure that will continue a racist history of fossil fuel pollution.

New York State has failed to hold National Grid accountable but New Yorkers, as demonstrated on this call, are doing so. Community members shut down construction and have launched the gas strike bill, that as I mentioned, I am participating in.

We will not sit by and pay to be

poisoned. I'd like to call on the Committee to reject this rate hike and to take action today, towards sustainable energy. Thank you for your time.

A.L.J. COSTELLO: Thank you. Our next speaker will be Katerina Pittus and if you are calling in, please hit star three on your telephone, so that we can identify you and unmute your line. Okay. I'm not seeing anyone. So, our next speaker is Polina Riabova. I'm not seeing Ms. Riabova. Our next speaker then will be, Gigi Nieson.

MS. NIESON: Hi there, can you hear me?

A.L.J. COSTELLO: Yes, we can hear you.

MS. NIESON: All right. Great, my name is Gigi Nieson. I mean, maybe you can see my spelling on the screen but it's G-I-G-I N-I-E-S-O-N, not repeated twice. And, I'm a resident of Bed-Stuy Brooklyn and I'm calling on the Commission to reject this rate hike. I learned about this project pretty recently ago. During the Pandemic, I actually had to go back to Pennsylvania because that's where I've grown up as a child and that's a fracking state. So, when I heard about the M.R.I., the North Brooklyn

Pipeline and the fact that they were using the gas from extraction from ... in our state, I was really appalled to hear that because our state has experienced earthquakes -- man-made earthquakes, as well as water contamination, due to fracking and that's being brought right back here to my neighborhood where I now live in Brooklyn -- in Bed-Stuy Brooklyn.

So, it's really terrible to see that even though New York State claims to be a forward, green energy state banning fracking, they're basically hypocrites because they're just using fracked gas from another state that's harming my community and I'm not going to pay for my own destruction. I'm not going to pay for the lives of many, many people's destruction.

So, that's why I'm asking for the Commission to reject this project and reject the rate hike. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker is Julie Baker. If you are calling in by telephone, please hit star three. Okay. We'll move on then to Kevin Lacherra and again if you're calling in, hit star three.

MR. LACHERRA: Sorry, hold on. Can you hear me all right?

A.L.J. COSTELLO: Yes, we can hear you. I'm sorry, you're -- you're not calling in? You're -- you're participating -- I -- I overlooked your name, I apologize. Yes, we hear you. Just please spell your name for the record and you can give your statement.

MR. LACHERRA: Sure, my name is Kevin K-E-V-I-N, Lacherra L-A capital C-H-E-R-R-A.

A.L.J. COSTELLO: Okay. You can proceed with your statement.

MR. LACHERRA: My name is Kevin Lacherra. I'm a fourth generation Greenpointer and I'm here to oppose any rate hike that forces customers to pay for the North Brooklyn Pipeline and fracked gas projects throughout our state.

The Public Service Commission should serve the people and reject this rate hike. I'm here because I know what the expansion of this dangerous infrastructure by National Grid will do because I know what National Grid and corporations like it have done to my home.

The industrial revolution in New York,

was born on the banks of Newtown Creek. Fossil fuel companies have been doing their work in Greenpoint since before the Civil War. And, what that looks like for the people here, what it really and truly looks like, is soil so poisoned by chemicals, that we can't grow food. And, it looks like air so choked with pollutants, that we have some of the highest asthma rates in the five boroughs. And, it looks like one of the largest oil spills in North America beneath our feet, more oil in the ground then the Exxon Valdez spill; oil that National Grid is responsible for cleaning up, Federal superfund site and the destruction by the same corporations of the Newtown Creek.

And, it looks like lifelong residents of Greenpoint, that are able to point to a spot on the map of this neighborhood and tell you what industry was there, based on the cancer that their aunt or their uncle or their grandmother or their grandfather died from and there is no more egregious black mark on that map than the National Grid facility on Maspeth Avenue; some of the most polluted land on this continent.

Its 110 acres could hold every square

inch of park space, that exists north of Flushing Avenue and that's all of Greenpoint and Williamsburg combined. And, for the past year, through all of the suffering that this city, you know, and this -- and this state and this country and this world has endured, National Grid has been raising a pipeline to it, as fast as they can, without the consent of the people.

Many schools and nursing homes and libraries and public housing, through black and brown communities, in the face of opposition from every one of our elected officials and active resistance from our people. It got this way because it's not for us. It's for the profit of their company. These rate hikes and their approval, is a huge step for New York State; permission from National Grid to continue to build out this fracked gas infrastructure through our homes; steps that will take us over the cliff.

The climate emergency that is facing our city, is not an emergency of tomorrow. It is right now. It is running beneath the ground from Brownsville to Buskwick. It is in the plans of this corporation, to press the residents of Cooper Park Houses between the massive highway and huge fracked

gas buildout. It is in the 150 years of destruction of my home, of the place that I love.

The decisions that we make matter. It matters to the people who live here; those that will not have the luxury of taking their profits to higher ground. We do not want to pay for our own destruction. We do not want to bury anyone else and we will not. We need public power now but in the meantime, we need the Public Service Commission to reject this rate hike, fully, completely and without delay.

A.L.J. COSTELLO: Thank you for your statement. Our next speaker will be Polina Riabova.

MS. RIABOVA: Hi, my name is Polina Riabova. To spell that, that is P-O-L-I-N-A R-I-A-B-O-V-A. I live in Bushwick Brooklyn and I'm involved with this rate case as a party. I urge you to please reject the joint proposal and do not approve the rate hike.

The North Brooklyn Pipeline or the M.R.I. Construction Project, is being built through my neighborhood and I have a lot of concerns for my own safety, as well as the safety of my neighbors and the devastating impact that this pipeline is going to

have on the environment. It's unconscionable that National Grid and the State, has ignored black, brown and indigenous activists and community members ... themselves to the pipelines and putting their bodies on the line, to speak out and say that we are not -- they are not okay with this and we are not okay with this project -- this dangerous project and infrastructure being built against the will of the community and our neighborhoods.

The idea that the rate hike will go towards ... initiatives, is laughable, considering how dangerous fracking is, both to the environment, as well as communities who live along the pipeline. It can explode at any moment, it pollutes the air and there's so many reasons why it's just -- the idea that the rate hike will provide green initiatives is just not accurate. It's not factually accurate and it's incredibly -- it's just really difficult to swallow the fact that these corporations are still -- still think that they can go against communities who are very informed about these issues and, you know, trick us into thinking that this will somehow be beneficial. That the destruction of the environment and putting everyone's safety and putting communities

that are already at a disproportionate rate of asthma, etcetera, etcetera, on the line.

Just -- I urge you not to approve this rate hike. It's not actually -- as another speaker said, it is not actually affordable and the idea that your -- that National Grid has presented this as an affordable solution to -- it's -- it's just not -- again, it's not true because it is a rate hike as another speaker has said and I just want to emphasize that. It particularly is not affordable to raise people's ability to pay for their own needs during the Pandemic, especially neighborhoods where it is disproportionately black and brown who will be most affected by this. This is targeting vulnerable communities.

This rate hike proposal ignores tens of thousands of public comments that were submitted in this proceeding and in the proceeding investigating National Grid's ... 2019 moratorium. And, as a National Grid customer, I will be participating in the rate hike -- well, I'll be participating in the rate hike -- I'll be withholding money from National Grid and participating in the strike against this company because it does seem that

money is the way that they are -- the only thing that they will listen to.

And, please I really urge you to choose community safety and sustainability over executive's paycheck, as we are in the midst of a climate crisis, in the middle of a Pandemic still and vulnerable communities should not be prioritizing -- should not be asked to make the rich richer, at the expense of our environment, as well as people who live in this city and business as usual will get us all killed. Thank you.

MR. WHITE: Thank you. Your Honor, can you hear me? Hello?

MS. VEGA: Joseph, I do hear you but I do not hear the judge.

A.L.J. MORENO: My apologies, I had -- this is Judge Moreno. Judge -- Judge Costello has lost his connection temporarily. Thank you very much for your comment.

MR. WHITE: Thank you.

A.L.J. MORENO: Our -- our next speaker will be Kat Em. I do not see.

MR. WHITE: If you've called in, please hit star three, thank you. Sorry, Your Honor.

I don't see Kat and I don't see any raised hand for Kat. Joshua November would be next, I believe.

A.L.J. MORENO: I believe that's correct. Mr. November?

MR. NOVEMBER: Hi, can you hear me?

A.L.J. MORENO: Hi, yes, we can hear you. Could you please spell your name for the record please, sir?

MR. NOVEMBER: Yes, my name is Joshua November, J-O-S-H-U-A and my last name November spelled just like the month, N-O-V-E-M-B-E-R.

A.L.J. MORENO: Great, thank you. Please proceed.

MR. NOVEMBER: Okay. So, I am a resident of East Williamsburg and I believe I'm about a block from the proposed pipeline and yeah, I just urge the powers that be, to block this project because aside from it being an environmental disaster, it's also a health disaster. And, as we've seen time and time again with fracked gas -- gas pipelines, it's not a question of if they leak and explode but when and I don't want this a block from my house. I don't want it in the earth, at all. And, I just think it's common sense and it's

blatantly obvious, that the consideration here, is the profits of a few over the well-being of many, many people.

I mean, it's bad enough building this thing out in, you know, no-man's land out west in the United States where it's not a high population density. But, trying to build one in Brooklyn, where millions of people live, is just total insanity and I -- it's just so blatantly wrong. And, please -- yeah, I oppose the rate hike and I am also withholding money from National Grid. Thank you.

A.L.J. COSTELLO: Thank you. I'm sorry, this is Judge James Costello. I -- I was -- had some technical difficulties. I am back on the line. I just want to ask certain people who have their hands raised, at this point in time, to please lower their hands and that's George Povall, Joshua November, Brian Kavanagh and Jacob Shipley. I'm going to go through the people that we had called earlier who were not available and see if they're available now. And, then depending on how much time we have left, we'll open it up -- potentially open it up for other people, if there's anyone else that wants to provide a statement.

So, I'm going to start with Emily Gallagher. If you are on the line and calling in, please hit star three. Okay. Moving on to Lynn Tondrick?

Sara Cronim, if you're calling in, hit star three. Barbara Hurtell? Luz Gouelle? Nosir Nicholas and if you're calling in, we need you to hit star three. Jeanette Bartlett? Katatrina Pittess? Julie Baker? Kat Em? Okay. And, I have not seen any of those people. Mr. Kavanagh has had his hand raised for some time. I don't -- do not know if he would like to make a statement. Please unmute him, so we can -- Mr. Kavanagh, would you --

ELLIANA: Hi, this Elliana. I'm here on behalf of the Senator.

A.L.J. COSTELLO: Okay. Would you like to make a statement, at this time?

ELLIANA: Yes -- yes, we would.

A.L.J. COSTELLO: Okay.

ELLIANA: I'll just record Brian's name, State Senator Brian, B-R-I-A-N Kavanagh, K-A-V-A-N-A-G-H. And, we are -- we want to thank Judge Costello and Judge Leary and the P.S.C. for the opportunity to provide testimony this evening. We

are here to join our colleagues, constituents and all of the folks who have spoken this evening and calling on the P.S.C. to reject any rate hike that forces New Yorkers to pay for the North Brooklyn Pipeline and the other fracked gas projects, like the Liquefied Natural Gas infrastructure that would be in Greenpoint, which is one of the neighborhoods that the Senator represents.

In passing the C.L.C.P.A. in 2019, our State of New York committed to a goal of reducing dependence on fossil fuels, rather than increasing our dependence on fossil fuels. And, therefore, going forward with National Grid's proposal and this joint proposal of expansion, is inconsistent with the commitment that our State made and that the P.S.C. is responsible for upholding.

National Grid's rate hike does not serve the public interest and instead, invests hundreds of millions of dollars in projects that are not necessary. There are reports from several institutions, which I'm sure you are all aware about already but to name a few, the Institute for Energy Economics and Financial Analysis, the Energy Future's Good for 350 Brooklyn and the Synopsis Energy and

Economics Group, they have all conducted thorough assessments of National Grid's assertion, that there is an increased need for natural gas and all of them have concluded that this claim is false. They have found that there is not a need for the proposed expansion, especially given recent data that has come forward since the Pandemic, that shows that there is in fact, a decrease in demand for natural gas. So, this is not a reliable -- reliability project. We already have reliable access to natural gas for our constituents in Brooklyn and the surrounding areas. This is a way for National Grid to make money and we don't want to see the P.S.C. go along with that plan. New Yorkers should not be responsible for paying for these projects that National Grid began to construct before engaging with the public.

This rate hike proposal ignores more than 8,297 public comments that have been submitted on your website, as of this moment, though I'm sure there are many more, via email and phone. And, what is very concerning, is that Judges, you have so many mechanisms for receiving public comment, via phone, via email and electronically and yet, it appears that you may not actually be considering these comments.

So, we urge you to make this hearing something more than a meaningless exercise and instead, and opportunity to listen to what New Yorkers want and to act in the public interest, as the name of your department would suggest.

We really appreciate the time you've taken to listen to folks today and we hope that you will act in the best interest of New Yorkers with the choices that you make and really, really deeply urge you to consider the future of New Yorkers and the future of our climate as you move forward. Thank you so much.

A.L.J. COSTELLO: Thank you. We will try George Povall again. Mr. Povall?

MR. POVALL: Hi everybody. This is George Povall. My name is spelled G-E-O-R-G-E P-O-V-A-L-L and I am the Executive Director of O.R. Energy, a Long Island non-profit, focused on stopping climate change and promoting environmental protection.

I, myself and on behalf of O.R. Energy, strongly oppose this joint proposal. Here on Long Island, our communities have been fighting against the company's Compressed Natural Gas, C.N.G., infrastructure expansions at the Glenwood, Barrett

and Inwood plants in Nassau because they pose immediate and long-term health risks to us and that's not to mention what they've shoved in ... as well.

But, the trucks that they intend to bring through Long Island's already overcrowded corridors, in order to inject the C.N.G. into the transmission system at these sites, which are highly explosive and so dangerous that they are currently illegal in New York City, is something that's very concerning to the residents here, as well.

The supply and demand gas that the companies claim is justification for this new infrastructure, is drastically overestimated and it does not take into account the mandates of the C.L.C.P.A., to radically reduce greenhouse gas emissions by 2030. It also conveniently ignores the fact that the coming of off-shore wind power, which will happen in 2025, 2026 and 2027 and beyond, will displace much of the need for the dirty fossil fuels for electricity generation in our entire downstate region, freeing up quite a lot of supply that has not been accounted for. I know that the date that that is going to come online is not set yet but it's not really -- there's -- there's going to be almost no

need for -- for gas on Long Island for electricity generation or -- or New York City, once this happens.

We had professed that these projects will inevitably become stranded assets for that reason because before too long, as the climate crisis worsens, the emissions reduction mandates are going to become very severe. How could it possibly be prudent or in the public interest, to allow even the possibility of rate recovery for a company's solely self-serving construction investment process -- profits but the Company itself has already abandoned those investments? The Company recently announced publicly, the discontinuation of their own plans to build the C.N.G. filling plant for those Long Island injection sites in Greenpoint, which was to supply that gas. So, the Company has already stranded these assets by their own hands.

And, it's not that we endorse the C.N.G. supply project, it's far from it. But, the point is, that this cancellation immediately now, strands these Long Island assets with no supply mechanism for their use before they were even used once.

Appendix Seven Schedule 11.11 of the

joint proposal, the Long Island C.N.G. project, shown with their annual ... breakdowns, then three tiny, tiny asterisks, leading to a tiny footnote, with a hugely problematic implication that says, due to these projects being in-service or nearing completion, K.E.V.L.I. will be allowed to recover the associated costs, without undergoing additional independent assessment. So, this statement actually says, that the Company will be able to recover the costs of any of their investments, no matter how imprudent or how harmful they are to New Yorkers, as long as the construction's started. Apparently, this is a problem that the D.P.S. needs to address within themselves.

All that's concerned Staff, is the fact that construction has started or is completed. But, what type of precedent does this set? This is not accountability. This is just enabling unaccountable projects, gambling with the public's money and then abandoning that investment. But, we know why they abandon that investment because they're covering up the potential illegal segmentation of an overarching, giant project that this rate case represents and it's a miscarriage of environmental

law. In this sprawling, unapproved project where the North Brooklyn Pipeline meets the Greenpoint L.N.G. plant meets the now canceled Greenpoint C.N.G. plant, to the additional infrastructure now built on Long Island, which is basically a pipeline on wheels, it's all built -- segmented infrastructure for the same thing, based on how it avoided proper required environmental review, which it was never passed and to further injure us, they're just seeking to have us pay for it anyway, it doesn't make any sense.

Where were their claims of the C.N.G. filling plants cancellation or that just more lies and ... that they used to distract from this issue of its segmentation? If it was cancelled, why hasn't it been removed from this rate case? Why are they seeking to -- to still be paid for?

Staff must acknowledge and listen to tens of thousands of people who have filed public comments against this project. The State regulatory agency must insist that they are the Department of Public Service and act accordingly.

This case deserves the decisive outcome of receiving no rate payer recovery, in our opinion. That would simply reward the free-wheeling

use of public funds, without accountability, without prior review, nor any long-term public return on investment. We should not pay for building projects that no-one asked for and that who's ... is then canceled.

I request first and foremost, that rate recovery for Glenwood, Barrett and Inwood and all Long Island C.N.G. and related facilities, be denied. I also request that for the M.R.I. project. I request that the selection of an independent assessor is not a decision that should be made by Staff alone and in fact, I don't like the idea of an independent assessor because it's just another level, another layer of unaccountable appointments. We don't need a third level down when the D.P.S. should just be making this ruling in the public interest outright.

It's imperative that its consultant also be an expert in renewable energy and not gas engineering. We need to move to renewable energy. We need to do it now. Thank you very much for your time.

A.L.J. COSTELLO: Thank you. So, what we're going to do is, open it up for anybody that has

not registered but who would now like to make a statement on the record. And, if you are participating by WebEx, you can use the raise hand function to do that. If you are participating by telephone and would like to provide a statement, you would hit star three, so we can identify you. And, at this point, I see Mr. Benny Woodard has his hand raised.

MR. WOODARD: Hello, sound check.

A.L.J. COSTELLO: Yes, we can hear you.

MR. WOODARD: All right. My name is Benny Woodard, B-E-N-N-Y W-O-O-D-A-R-D. To National Grid, I do not appreciate you standing in front of us today and lying to our faces, telling us that this joint proposal is a step towards climate justice and that it is in the public interest. You thought with ... pride, the concessions earned in the future of heat section of the joint proposal, alongside flowery stock images of the New York City skyline, while intentionally withholding the disgraceful truth, that the real fuel behind this proposed rate hike, is billions of dollars in fossil fuel infrastructure investments for a four year period, when we as a

city, state and planet, on the brink of climate disaster. And, those fossil fuel investments that you, National Grid, did mention, you dilute with the intentionally vague terms, safety and reliability. It does not matter how many leak-prone pipe replacements you do, fracked gas is not safe, fracked gas never was safe and never will be safe.

To the members of the public and also to the Public Service Commissioners who are present here, to see the truth that underlies this joint proposal, please look at the proposal in Appendix One Schedule Five and Appendix Two Schedule Five, to see the terrifying numbers. Investments for the future of heat commitments, are less than one percent of the total investments proposed to be made by National Grid in this joint proposal.

The sad truth, is that these quote, steps toward decarbonization are hardly more than a manipulative greenwashing campaign. It is absolutely imperative that every single statement made, regarding National Grid and the investments that they make, be understood in context, the regulatory context, in which their business exists, is one that incentives and rewards the continued build-out of

fossil fuel infrastructure, regardless of its impacts on the health of the people and the planet and regardless of the demands of those people for an immediate transition to renewable energy.

It does no matter how many times any of National Grid's lawyers or representatives stand in front of us and blab the words safety and reliability, their top priority is and always will be, safety and reliability for their shareholders profits. This disturbing fact comes in the form of the R.O.E., return on equity, which can be seen on page ten of the joint proposal, which is set at eight percent in this proposal. National Grid does not actually make money selling fracked gas. They make money building the gargantuan pipes and trucks and injector stations and vaporizers, through which that commodity is transported and then by hiring lawyers to plead their case to a complicit regulatory commission, one which inevitability gives them the permission they seek to raise bills for millions of every day New Yorkers and good people, to fill their shareholder pockets with return on equity. The result of this dystopian dance between the corporate utility and the regulator, is a public that is sick

and dying. To approve this joint proposal, would be an act of profound violence by the Public Service Commission. It would be an act of profound violence.

I will not pay for the North Brooklyn Pipeline and my community will not pay. We are striking; shame on you. And, I leave you with this, to the regulators and to National Grid representatives, maybe you do not have the benefit of coming of age during the sixth mass extinction like I do. Perhaps you have not played with recurring nightmares of heat suffocation and dying like thirst like I am. Perhaps you do not have six year old students, like I do, with whom every interaction you have, is ... with an existential despair and fear for their future. Perhaps you do not return to the forest you grew up playing in, the one in which you developed an indescribably profound sense of awe for and love of the interdependent systems of life, of which we are a part and imagine the trees withering and dying, the ground baron and dusty and the streams choked with sickness and despair. Perhaps these images do not plague your daily existence on planet earth as they do mine.

Your choices in this rate case matter

and will have a profound effect on every one of our futures. It is your duty to begin to make things right. Thank you for listening.

A.L.J. COSTELLO: Thank you. Okay. If there is anyone else that at this time would like to make a statement, if you are participating by WebEx, you can hit the raised hand function or if you are participating by telephone, you can hit star three, so that we can identify you. I do not see any --

MR. WHITE: I don't see any additional raised hands, Your Honor.

A.L.J. COSTELLO: -- okay. Thank you. Well, with that, I -- I want to remind everyone, that you may still submit comments by the other methods that I described earlier and that are also contained in the notice of the public statement hearing, that was issued on May 21st, 2021. Judge Moreno and I would like to thank everyone who has provided statements this evening. We would like to thank Commissioner Burman for being present and we would like to thank Joseph White and Xenia Vega for their technical assistance and Becky Foster, our court reporter. At this point, the hearing is now

concluded and we are off the record. Thank you.

(The proceeding concluded.)

STATE OF NEW YORK

I, BECKY FOSTER, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 67, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 16th day of June, 2021.

BECKY FOSTER, Reporter